ELEVATED JUSTICE

The former CJI bequeathed on the court a legacy of rigour, justice and constitutional morality, but also drew scrutiny for the loose ends left by his judicial balancing

By Kaushik Deka



In a year marked by judicial milestones and moments of quiet symbolism, former Chief Justice of India Dhananjaya Yeshwant Chandrachud emerged as a figure who reshaped critical debates that will reverberate for years. At the core of his judicial philosophy, there had always been a perceptible tilt towards a stance of fairness and constitutional morality. Nowhere was this more evident in 2024 than in his landmark verdict striking down the Electoral Bonds Scheme as unconstitutional. By declaring it a violation of the citizen's right to know and an infringement on free speech, the court under Chandrachud reaffirmed a foundational democratic principle: transparency is the lifeblood of an accountable government. As the year wore on, though, a muffled medley of fraternal reproach too had risen up. Enough for Chandrachud to respond—sometimes publicly, but always gracefully, and at other times in seeming acts of judicial balancing. Thus it was that it seemed to come too late for many when Chandrachud's bench addressed the issue of "bulldozer justice"—a term used to describe extra-judicial demolitions. Even so, the court raised legitimate questions about the unchecked misuse of executive power, duly warned against the erosion of the rule of law and set a benchmark.

Chandrachud's docket also included questions of immense complexity and nuance, such as the sub-classification of Scheduled Castes and Tribes. Here, the court recognised the need to balance equity within historically marginalised groups while protecting the broader framework of affirmative action. His deliberation on Aligarh Muslim University's minority status reflected a similar sensitivity, as he worked to affirm cultural and educational rights without undermining the constitutional commitment to equality.

His jurisprudence extended to the realms of federalism and economic governance. Chandrachud's rulings on states' authority to tax mines and minerals and regulate industrial alcohol provided clarity on the boundaries of state autonomy within India's quasi-federal system. His nuanced verdict on the nature of private property delved into the evolving tension between individual rights and collective welfare, offering vital insights into how the law can navigate urban development and land acquisition disputes.

For a Clear Verdict

- Landmark verdict declaring Electoral Bonds Scheme unconstitutional, reaffirming transparency as a cornerstone of democracy
- Rulings in the RG Kar Medical College rape case and on 'bulldozer justice' highlighted institutional accountability, misuse of executive power
- Delivered nuanced judgments on the